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EDITOR'S PICK

Flock Safety, local officials share information about license plate readers

Devan Filchak | The Journal Gazette
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Automatic license plate readers from Flock Safety in use in the city help prosecutors solve crimes but have drawn opposition over privacy concerns.

Courtesy Flock Safety

Prosecutors would likely not be able to solve as many cases without Flock Safety's license plate reader cameras, Allen County's chief counsel said Tuesday.

The cameras have caught opposition from City Council members and citizens regarding their privacy, the data's security and the Fort Wayne Police Department's transparency. A \$120,250 contract to renew the services for 36 cameras was initially shot down by council members before they decided to delay the final decision until July 28.

Flock Safety representatives and Fort Wayne Police Department officials presented more information to council Tuesday about the technology in hopes of quelling fears.

Tesa Helge of the Allen County prosecutor's office said the technology has been instrumental in providing sufficient evidence for jurors in trials. It's also helped locate suspects, such as Jermard Lewis, who was convicted of murdering 59-year-old cashier Perla Nieto at a Kroger grocery store on Dec. 7, 2023.

Surveillance cameras caught Lewis' vehicle but not the license plate. But investigators were able to use Flock to locate the silver SUV with a sunroof driven by Lewis.

"This is a very quick arrest for the safety of the community and justice for Perla," Helge said, "and I don't believe that would have happened (without Flock) – certainly not as quickly."

Flock license plate readers are used by about 6,000 agencies across the country, and the cameras have supported more than a million investigations, said Holly Beilen, a Flock Safety spokesperson. She also shared information about how the technology works and how the data can be accessed.

The Fort Wayne Police Department has to agree to share information with other agencies before they can access the data. Detective John Greenlee said the department works with more than 2,200 other agencies.

Local investigators can only search Fort Wayne's database after entering a case number and selecting an offense type. Police Chief P.J. Miller previously said the system hadn't been audited by Internal Affairs. However, Sgt. Jonathan Cutler said Tuesday that the searches are audited every month.

The system also automatically flags irregular searches, including ones that were searched by only one officer.

Data is stored for 180 days before it's deleted, Cutler said. That timeframe was chosen because it matches the department's policy for holding onto officer-worn, body camera footage, he added.

Council members asked for information for similar-sized cities that used the cameras. Andrew Blanchette, Flock territory sales manager, said data from cameras in the Michigan City and South Bend areas are used in 30 to 40 criminal cases every three months.

Beilen said many myths surround Flock's technology, including that the company sells data and the cameras can track people and use facial recognition. None of those are true, and the technology does not attach vehicles to specific drivers or owners, she said.

When the contract was first considered last month, council members were split on the contract with a 5-4 vote. The opposition was from Councilwoman Rohli Booker, D-6th, and Councilmen Paul Ensley, R-1st; Nathan Hartman, R-3rd; Russ Jehl, R-2nd; and Scott Myers, R-4th.

Before the final decision later that night, council members decided to hold off. Jehl first suggested waiting until July 14, and Hartman asked for a couple more weeks.

The presentation and answers to council members' questions did not seem to make opponents more comfortable with the technology's use in Fort Wayne. About 20 people spoke during public comment, asking council members to vote against the Flock contract.

Council members said after the meeting that they appreciated the presentation, but they need more information before a final decision.

Councilwoman Rohli Booker, D-6th, said the presentation was helpful, but many concerns remain.

"Do we have time to kind of mull those things over, connect with the police department, do some more research and ultimately make a decision about how we are going to move forward with this and how we're going to make sure that we actually are protecting the citizens of our community as far as policy and surveillance and also supporting the police department too?" she said. "It's not an easy thing. We have to weigh a lot of different things."

Councilman Paul Ensley, R-1st, said he appreciated receiving the information, but he's not sure whether it was enough to change his mind.

"Fundamentally, I don't think it changes my calculation, which is not really even about the security of their systems or the effectiveness of their programs," he said. "It's really a question of safety versus personal liberty."

The contract is expected to be discussed July 28 at a 5:30 p.m. meeting at Citizens Square, 200 E. Berry St.

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MORE INFORMATION



Fort Wayne City Council unsure about continuing Flock license plate readers

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